

26STCV12157 26STCV12157

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-07-09

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Case Number: 26STCV12157 Hearing Date: July 9, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: July 9, 2026

Case Name: Navarrette v. Better Mortgage
Corporation

Case

No.: 26STCV12157

Matter: Application to be Admitted Pro Hac Vice

Moving

Party: Better Mortgage
Corporation

Responding Party: None

Tentative

Ruling: The Applications to be
admitted pro hac vice are denied.

Defendant Better Mortgage
Corporation applies for two orders granting

Michael

J. Lufkin and Carly E. Hazelip admission to appear pro hac vice on its behalf. The

applications
are unopposed.

Legal Standard

An attorney
in good standing in another jurisdiction may apply to appear as counsel pro hac vice in the State of California by filing a verified application together with proof of service by mail of a copy of the application and notice of hearing on all parties who have appeared in the case and on the State Bar of California at its San Francisco office, with payment of a \$600.00 fee. The attorney cannot be a resident of California, employed in the state, or regularly engage in substantial business, professional, or other activities in the state. (Cal. Rules of Court, rule 9.40(a)(1)-(3), (c)(1).)

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The written

application must state: (1) the applicant's residence and office address; (2) the courts to which the applicant has been admitted to practice and the dates of admission; (3) that the applicant is a member in good standing in those courts; (4) that the applicant is not currently suspended or disbarred in any court; (5) the title of each court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and (6) the name, address, and telephone number of the active member of the State Bar of California who is attorney of record in the local action. (Cal. Rules of Court, rule 9.40(d)(1)-(6).)¿

Analysis

Both Michael

J. Lufkin's and Carly E. Hazelip's applications contain the required information under California Rules of Court, rule 9.40(d).

However, both

applications are defective because there is no indication that Defendant has paid the respective application fees. (Cal. Rules of Court, rule 9.40(e).) Both memorandums mention a \$50 fee, but it is unclear what it relates to, as the fee for each application is \$600. (Hazelip Mot., 3:16-18; Lufkin Mot., 3:16-18.)

Thus, without any certainty that both Michael J. Lufkin and Carly E. Hazelip have paid the required fees, the Court denies both applications.

Conclusion

The Court denies the Applications of counsel, Michael J. Lufkin and Carly E. Hazelip, to appear on behalf of Defendant Better Mortgage Corporation.